Memorandum of Understanding (MoU)

on
Personal Data Sharing required for the Communities for Afghans Project

This MoU is made between

The Secretary of State for Levelling Up, Housing and Communities (“DLUHC”)

and

London Borough of Camden

DATA PROTECTION

DATA PROTECTION LEGISLATION PARAGRAPH DEFINITIONS:

London Borough of Camden means:

Assurance Checks: safeguarding checks conducted on a sponsor to ensure their suitability to be involved in the CfA project.

Controller, Processor, Processing, Data Subject, Personal Data, Personal Data Breach, Data Protection Officer, Data Protection Impact Assessment: take the meaning given in the UK GDPR or, in respect of processing of personal data for a law enforcement purpose to which Part 3 of the DPA 2018 applies, the meaning in that part if different.

DPA 2018: Data Protection Act 2018.

Data Loss Event: any event that results, or may result, in unauthorised access to Personal Data held by the Processor under these Conditions, and/or actual or potential loss and/or destruction of Personal Data in breach of these Conditions, including any Personal Data Breach.

Data Protection Legislation means as applicable, the UK GDPR, the DPA 2018, the Privacy and Electronic Communications (EC Directive) Regulations 2003 and any other applicable laws and regulations relating to the privacy or the processing of personal data, including any amendments or successor laws or regulations thereto.

Data Protection Principles: means the principles set out in Article 5 of the UK GDPR.

Data Sharing Agreement: means an agreement setting out the purpose, use, standards and roles and responsibilities of the data sharing as per the Supervisory Authority's statutory Code of Practice on Data Sharing.

Data Subject Request: a request made by, or on behalf of, a data subject in accordance with rights granted pursuant to the Data Protection Legislation to access their Personal Data.

Data Subject Rights: means those rights set out in Chapter III of the UK GDPR.

DPIA and Data Protection Impact Assessment: an assessment by the Controller of the impact of the envisaged processing on the protection of Personal Data.

UK GDPR: means the General Data Protection Regulation (as defined in the DPA 2018) as it forms part of the law of England and Wales, Scotland and Northern Ireland by virtue of section 3 of the European Union (Withdrawal) Act 2018, and as amended by the Data Protection, Privacy and Electronic Communications (Amendments etc) (EU Exit) Regulations 2019.

EU GDPR: means EU General Data Protection Regulation.

Law: means any law, subordinate legislation within the meaning of Section 21(1) of the Interpretation Act 1978, bye-law, regulation, order, regulatory policy, mandatory guidance or code of practice, judgment of a relevant court of law, or directives or requirements with which the Parties are bound to comply.

Home Department and the Home Office: the Secretary of State for the Home Department, of 2 Marsham Street, London, SW1P 4DF.

LED: Law Enforcement Directive (Directive (EU) 2016/680).

Onward Recipient: an external third party that Local Authorities may share Personal Data with after receipt of data from DLUHC;

Party: a Party to this Data Sharing Agreement listed in Annex 1;

Personal Data: means the data fields specified for sharing in Annex 1;

Personnel: means all directors, officers, employees, agents, consultants and contractors engaged in the Processing of Personal Data.

Processor Personnel: means all directors, officers, employees, agents, consultants and Recipients of the Processor and/or of any sub-Processor engaged in the performance of its obligations under these Conditions.

Protective Measures: appropriate technical and organisational measures which may include: pseudonymising and encrypting Personal Data, ensuring confidentiality, integrity, availability and resilience of systems and services, ensuring that availability of and access to Personal Data can be restored in a timely manner after an incident, and regularly assessing and evaluating the effectiveness of the such measures adopted by it.

Sub-processor: any Third Party appointed to process Personal Data on behalf of that Processor related to these Conditions

1. **Introduction**

1.1. This Memorandum of Understanding (MoU) on personal data sharing is not legally binding and no legal obligations or legal rights shall arise between the Parties from the provisions of this MoU (hereafter referred to as "this Agreement"). By signing this MoU (i) the Parties do not intend to create contractual or other legal relations; and (ii) the Parties agree to adhere to the framework set out in the Agreement.

1.2. It has been agreed between DLUHC and Local Authorities to ensure agreement and appropriate arrangements are in place in respect of the sharing of Personal Data as Data Controllers.

1.3. The use of Personal Data governed by this data sharing Agreement (DSA) covers the processing of Personal Data provided by DLUHC, to be transferred to and by London Borough of Camden for the purpose set out in clause 4 below. The transfer and use of Personal Data is necessary to deliver the Communities for Afghans project (CfA).

1.4. Given urgency for the sharing of Personal Data covered in this DSA, a Party accessing or otherwise using the data constitutes formal agreement to the terms of this DSA, in parallel to the execution clause 29 below.

2. **Roles and Responsibilities**

2.1. DLUHC is an Independent Data Controller for the processing of the Personal Data up to the point that the Personal Data is provided to London Borough of Camden.

2.2. Citizens UK is the main Data Processor contracted by DLUHC for processing of its Personal Data. It will directly receive Personal Data from London Borough of Camden and other parties delivering CfA. For avoidance of doubt, as DLUHC's Processor any direct sharing of Personal Data with Citizens UK is synonymous with sharing with DLUHC; DLUHC will be solely responsible for the purpose, use and security of the Personal Data from the point that Citizens UK receives it from London Borough of Camden.

2.3. London Borough of Camden is an Independent Data Controller from the point that Personal Data is provided to them by DLUHC to facilitate delivery of CfA, and/or it collects its own personal data for the purpose of delivering the project. For avoidance of doubt, London Borough of Camden of the Personal Data from this point of receipt from DLUHC. Similarly, where London Borough of Camden provides Personal Data to DLUHC; DLUHC will be solely responsible for the purpose, use and security of the Personal Data from this point of receipt from London Borough of Camden.

2.4. No Controller-Processor, or Joint Data Controller relationship will apply.

2.5. London Borough of Camden may also wish to conduct its own Data Protection Impact Assessments in line with regulatory requirements if it judges that its processing will require one and to review its Privacy Notices as required.

3. The purpose of the processing

3.1. The Personal Data that results from the CFA project and shared with LAs is being used for the following primary purpose:

3.2. To permit DLUHC, Citizens UK, and London Borough of Camden to co-ordinate and deliver support for Afghan households through the Communities for Afghans project, and to ensure the appropriate distribution of public funds.

3.3. For DLUHC, the benefit will be to ensure that households accommodated through the CfA project receive appropriate support and safeguarding, and that public funds are distributed appropriately for the purposes of delivering the CfA project.

3.4. For London Borough of Camden, the benefit will be to ensure that households accommodated through CfA in their area receive appropriate support and safeguarding, and that public funds are distributed appropriately or the purposes of delivering the CfA project].

3.5. For beneficiaries of the project, the benefit will be that they are housed in appropriate accommodation, with access to appropriate services, which meet their specific needs.

4. Terms of release regarding Onward Recipients

4.1. London Borough of Camden will ensure that terms aligned to the information governance conditions contained in this DSA are mirrored onto any Onward Recipient of the Personal Data, including having data sharing agreements in place with them, and conditions for data deletion detailed in clause 22 below.

4.2. London Borough of Camden may receive the outcome of certain safeguarding and security checks against data subjects pertinent to their suitability under the Communities for Afghans project. [redacted] rivacy Notices should explain that 'information may be received from central government concerning safeguarding and security checks against data subjects pertinent to their suitability under the Communities for Afghans project', [redacted]

5. **Legal basis for the use of the data**

5.1. The legal basis that DLUHC and the Local Authority are using for the sharing and use of this data is

5.1.1. UK GDPR Article 6(1)(e) – the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the Controller,

5.1.2. DPA 2018, Part 2, Chapter 2, section 8 (d) – the exercise of a function of the Crown, a Minister of the Crown or a government department.

5.2. For DLUHC the *vires* for use of the above is *section 59(2)(c) of the Nationality, Immigration and Asylum Act* 2002.

5.3. DLUHC's view is that the most suitable *vires* for Local Authority may be section 111 of the Local Government Act 1972, though if you have previously worked directly with Home Office on refugee matters you may have your vires for processing identified already. The Local Authority is an Independent Data Controller and you may wish to take your own legal advice on your legal powers to process the shared Personal Data after receipt.

6. **Special category data being processed**

6.1. Special category data is to be shared between the Parties and is set out in Annex 1 of this DSA.

6.2. The legal basis that DLUHC is using for the sharing and use of this Personal Data is

6.2.1. UK GDPR Article 9(2)(g) – processing is necessary for reasons of substantial public interest, on the basis of domestic law which shall be proportionate to the aim pursued, respect the essence of the right to data protection and provide for suitable and specific measures to safeguard the fundamental rights and the interests of the data subject;

6.2.2. DPA 2018, Schedule 1, Part 2, section 6 – the exercise of a function of the Crown, a Minister of the Crown or a government department.

6.3. For DLUHC the *vires* for use of the above identical to clause 5.2 above.

6.4. For the Local Authority, the *vires* for the use of the above is identical to clause 5.3 above.

7. **Criminal data being processed**

7.1. Assurance checks and outcomes relating to individual sponsors will be made by the Home Office and DLUHC as part of the scheme. The outcome of these checks will be shared with London Borough of Camden as a necessary part of delivering the purpose set out in clause 3 but no other information is to be shared (see clause 4.2 above).
7.2 Any shared criminal data under this agreement will be set out in Annex 1

8. **Additional conditions for the processing of criminal data**

8.1. Section 10(5) and Schedule 1, Part 2, paragraph 6 of the DPA 2018.

9. **Compliance with the Data Protection Legislation**

9.1. The Parties agree that Personal Data used under this DSA shall be processed in accordance with the Data Protection Legislation.

10. **Compliance with the Data Protection Principles**

10.1. Save to the extent that an exemption applies to limit or exclude any of them, compliance with the Data Protection Legislation shall include (but is not limited to) compliance with the Data Protection Principles as described in Article 5 of the UK GDPR.

10.2. Personal Data shall therefore be –

10.2.1. processed lawfully, fairly and in a transparent manner ('lawfulness, fairness and transparency');
10.2.2. collected for specified, explicit and legitimate purposes and not further processed in a manner that is incompatible with those purposes ('purpose limitation');
10.2.3. adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimisation');
10.2.4. accurate and, where necessary, kept up to date and that every reasonable step is taken to ensure that personal data that are inaccurate, having regard to the purposes for which they are processed, are erased or rectified without delay ('accuracy');
10.2.5. kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed ('storage limitation');
10.2.6. processed in a manner that ensures appropriate security of the personal data, including protection against unauthorised or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organisational measures ('integrity and confidentiality').
10.2.7. Processed in accordance with the UK GDPR and demonstrating our compliance.

11. **Protective Measures and Personal Data Breaches**

11.1. The parties undertake to have in place throughout the Term appropriate technical and organisational security measures to:

11.1.1. prevent:

11.1.1.1. unauthorised or unlawful processing of the Personal Data; and

11.1.1.2. the accidental loss or destruction of, or damage to, the Personal Data; and

11.1.2. ensure a level of security appropriate to:

11.1.2.1. the harm that might result from such unauthorised or unlawful processing or accidental loss, destruction or damage; and

11.1.2.2. the nature of the Personal Data to be protected.

11.1.2.3. The Parties shall keep security measures under review and shall carry out such updates as are appropriate throughout the Term.

11.2. It is the responsibility of each party to ensure that its staff members are appropriately trained to handle and process the Project Personal Data in accordance with the technical and organisational security measures set out in Annex 1 together with any other applicable national data protection laws and guidance and have entered into confidentiality agreements relating to the processing of personal data.

11.3. The level, content and regularity of training referred to in clause 15.2 shall be proportionate to the staff members' role, responsibility and frequency with respect to their handling and processing of the Project Personal Data.

11.4. The Parties shall each comply with its obligation to report a Personal Data Breach to the appropriate Supervisory Authority and (where applicable) data subjects under Article 33 of the UK GDPR and shall each inform the other party within 24 hours of becoming aware of any Personal Data Breach irrespective of whether there is a requirement to notify any Supervisory Authority or data subject(s).

11.5. The Parties agree to provide reasonable assistance as is necessary to each other to facilitate the handling of any Personal Data Breach in an expeditious and compliant manner.

12. **Data Subject Rights**

12.1. The Parties will comply in full with the rights of Data Subjects in Chapter III of the UK GDPR where applicable.

12.2. Save where they are limited or excluded by an exemption these may include the right to –

12.2.1. Object – the right of the Data Subject to request that their Personal Data is not processed for certain purposes.

12.2.2. Erasure - the right of the Data Subject to request that their Personal Data is erased where one of the statutory grounds applies.

12.2.3. Data portability – the right of the Data Subject to obtain Personal Data and reuse their Personal Data for their own purposes across different services in certain circumstances.

12.2.4. Restrict processing - the right of the Data Subject to request that the processing of their Personal Data is restricted in certain circumstances – for example, where accuracy is contested.

12.2.5. Rectification - the right of the Data Subject to request that any inaccuracies in their Personal Data are rectified without delay. Request that any incomplete personal data is completed, including by means of a supplementary statement.

12.2.6. Access - the right of the Data Subject to request access to information about how their Personal Data is processed and to request a copy of that personal data.

13. Data Protection Breach

13.1. Each Party shall notify the other(s) as soon as possible or within 24 hours (whichever is sooner) of becoming aware of a Data Protection Breach in respect of Personal Data used under this Agreement.

13.2. The Parties agree that where appropriate, they will work together and ensure co-operation regarding the handling of such a breach.

14. Integrity and training of Personnel

14.1. The Parties will ensure that they take all reasonable steps to ensure the reliability and integrity of its Personnel who have access to the Personal Data which is processed under this DSA that they are aware of their obligations under the Data Protection Legislation and in particular that they have had appropriate training on the handling of Personal Data.

15. International Transfers of Data

15.1. The Parties are aware of the prohibition in Article 44 of the UK GDPR against the transfer of Personal Data used under this DSA to 'third countries' (as described in that Article) unless certain conditions are met. In the event that either is in any doubt about the legality of an international transfer of the personal data processed under this agreement, it shall consult the other as appropriate.

16. Additional notification requirements

16.1. The Parties shall notify the other without delay in the event that, in relation to the personal data processed under this Agreement, it –

16.1.1. receives any communication from the Information Commissioner or any other regulatory authority;

16.1.2. receives a letter before action or other communication indicating an intention to commence legal proceedings in respect of Personal Data processed under this DSA;

16.1.3. receives a complaint, notice, communication or penalty which and agree to collaborate on a response to such an enquiry.

17. Complaints/legal action

17.1. The Parties shall work together regarding the response to any complaint, communication or request from the Information Commissioner or other regulatory authority or any threatened litigation by a third party in relation to the Personal Data processed under this Agreement.

18. Classification of the data

18.1. OFFICIAL SENSITIVE.

19. Transmission of the data

19.1. The parties shall transfer necessary Personal Data requested under this Agreement, regardless of its format, only via secure means of transit. English local authorities will share data with DLUHC via the DELTA system.

19.2. Both Parties will ensure that any further Data Processor (or sub-processor) engaged by either one of them, shall only receive personal data via secure means of transit, regardless of its format.

20. Privacy Notices

20.1. The Parties' Privacy Notices shall reflect the data processing activities and any changes made to these as established under this Agreement, subject to the restriction stated in clause 4.2 above.

21. Record keeping

21.1. The Parties shall maintain complete and accurate processing of records to demonstrate their compliance with the Data Protection Legislation in relation to the Personal Data processed under this Agreement.

22. Retention and Deletion of Personal Data

22.1. In accordance with the principle of data minimisation the Parties shall delete their relevant personal data as required by the records retention schedules and within 2 years of the closure of the scheme unless DLUHC identifies that its continued retention is unnecessary before that point.

22.2. The Parties shall not retain or process Personal Data for longer than is necessary to carry out the Agreed Purposes. This includes any statutory, legal or professional retention periods applicable to the personal data.

23. Term and Termination

23.1. This Agreement shall commence on **01 July 2024** and will run for 6 months from this date unless terminated earlier in accordance with clause 23.2.

23.2. This Agreement can be terminated before its end date as per clause 23.1 only via mutual agreement between both Parties, with at least three months' notice in writing, unless both Parties are agreed that a reduced notice period is acceptable.

24. Resolution of disputes with data subjects or the Supervisory Authority

24.1. If either of the Parties has any issues, concerns or complaints about this Agreement it shall notify the other and they shall, acting in good faith, seek to resolve the issue by negotiations between themselves, and follow the resolution process.

24.2. In the event of a dispute or claim brought by a data subject or the Supervisory Authority concerning the processing of Personal Data against either or both Parties, the Parties will inform each other about any such disputes or claims and will co-operate with a view to settling them amicably in a timely fashion.

24.3. The Parties agree to respond to any generally available non-binding mediation procedure initiated by a data subject or by the Supervisory Authority. If they do participate in the proceedings, the parties may elect to do so remotely (such as by telephone or other electronic means). The Parties also agree to consider participating in any other arbitration, mediation or other dispute resolution proceedings developed for data protection disputes.

24.4. Each Party shall abide by a decision of a competent court in England and Wales or of that Supervisory Authority.

25. Resolution of disputes between parties to this agreement

25.1. The Parties shall each appoint a nominated representative to whom any disputes arising from the operation of this Agreement shall be referred.

25.2. If the Parties are unable to agree a matter arising under the terms and clauses of this Agreement, such a dispute shall be referred to the senior officers of the nominated representatives for resolution. The decision of the senior officers shall bind all Parties and be treated as resolving the dispute.

25.3. The Parties shall, where a dispute cannot be resolved by agreement between their senior officers, appoint an adjudicator whose decision shall be final.

25.4. In the event of a dispute or claim brought by a data subject or the Information Commissioner’s Office concerning the processing of shared Personal Data against either of the Parties, the Parties will inform each other about any such disputes or claims and will cooperate with a view to settling them amicably in a timely fashion.

26. Variation

26.1. This Agreement may only be varied by written agreement between the Parties.

27. Data Protection Officers (DPO)

27.1. The contact details of the DPO for DLUHC are:

27.1.1. [redacted] dpo@levellingup.gov.uk.

27.2. The contact details of the DPO for London Borough of Camden are: Andrew Maughan, DPO@camden.gov.uk

28. Governing law and jurisdiction

28.1. This Agreement shall be governed by and construed in accordance with English law.

29. Execution

29.1. Each Party agrees that the electronic signatures, whether digital or encrypted, of the Parties included in this Agreement are intended to authenticate this writing and to have the same force and effect as manual signatures. Delivery of a copy of this Agreement, bearing an original manual or electronic signature by facsimile transmission (including a facsimile delivered via the Internet), by electronic mail in "portable document format" (".pdf") or similar format intended to preserve the original graphic and pictorial appearance of a document, or through the use of electronic signature software will have the same effect as physical delivery of the paper document bearing an original signature.

29.2. This Agreement has been entered into on the date stated at clause 29 below and takes effect on the date stated at clause 22 above.

30. SIGNATURES

30.1. The signatories agree that the procedures laid down in this Agreement provide an acceptable framework for the processing of personal data, and that it is in a manner compliant with their statutory and professional responsibilities.

30.2. By signing this agreement, the signatories undertake to accept responsibility for implementation of the terms of this Agreement within their own organisations.

30.3. Signatories must also ensure that they comply with all relevant legislation.

[redacted]

Signed for on behalf of the DLUHC	**Signed for on behalf of London Borough of Camden**
Name: [redacted] Job: Deputy Director, Sponsorship Date: 18/6/2024	Name: [redacted] Job: Strategic Lead Refugee Communities Date: 1 July 2024

ANNEX 1
Schedule of Processing, Personal Data and Data Subjects

This Annex shall be completed by the Controller(s), who may take account of the view of the Processors, however the final decision as to the content of this Annex shall be with the Controller at its absolute discretion.

1. The contact details of DLUHC's Data Protection Officer are: [redacted] dpo@levellingup.gov.uk
2. The contact details of London Borough of Camden Data Protection Officer are: Andrew Maughan, DPO@camden.gov.uk
3. Any such further instructions shall be incorporated into this Annex.

Description	**Details**
Identity of the Controller and Processor	The Parties acknowledge that for the purposes of the Data Protection Legislation, the Authority is an Independent Data Controller and the Local Authority is an Independent Data Controller in accordance with clause 1 above. *Independent Controller: DLUHC* *Independent Controller: London Borough of Camden*
Subject matter of the processing	*Delivery of the Communities for Afghans project (CfA)*
Duration of the processing	Until scheme end plus 2 years from this point

Nature and purposes of the processing	Citizens UK will hold contact details of LA employees for the purpose of supporting Afghan beneficiaries. CUK will be responsible for processing storing and eventual destruction of LA employee personal data collected for the purposes of delivering the Communities for Afghan project. Personal data related to CfA beneficiaries will be shared from sponsor groups to LAs for the purpose of arranging welfare checks. LAs and CUK will be responsible for securely transferring pseudonymised data to DLUHC for the purpose of monitoring and evaluation. LAs will process and transfer data to DLUHC via Delta forms for the purpose of tariff payments to the LA. Both LAs and DLUHC will be responsible for managing, storing and eventual destruction of data received from LAs via Delta forms.
Data Processors referred to in this Annex	*Citizens UK*
Type of Personal Data being Processed	*<u>LA point of contact data</u>* *Name* *Workplace email* *Workplace telephone number* *<u>Named sponsor data</u>* *Name* *Address* *Email address* *Telephone number* *Bank details* *Assurance check outcomes* *<u>CfA participants' data</u>* *Name* *Email address* *Address* *<u>Delta form</u>* *Household size* *Number of children aged 3-4 and 5-18 in household* *Number of adults in household*
Categories of Data Subject	*LA employees* *Named sponsors* *Beneficiaries of the CfA project*

	Those involved in matching of visa applicants to accommodation offers and/or offers of wider support
Plan for return and destruction of the data once the processing is complete UNLESS requirement under union or member state law to preserve that type of data	*The Parties will dispose of respectively held data as per clause 21 of this Agreement.* *London Borough of Camden to provide DLUHC with relevant destructions certificates.*
Description of technical and organisational security measures	DLUHC staff are trained in data protection; data will be transferred using encrypted emails; Citizens UK have been through DLUHC's cyber assurance process.
Transfers to third countries or international organisations	For DLUHC this data will not be leaving servers within the United Kingdom. The LA is to ensure adequacy of their own processing if this will take place outside of the UK.
Legal Basis for Processing by DLUHC and London Borough of Camden	*<u>DLUHC</u>* *UK GDPR Article 6(1)(e) – the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the Controller,* *DPA 2018, Part 2, Chapter 2, section 8 (d) – the exercise of a function of the Crown, a Minister of the Crown or a government department.* UK GDPR Article 9(2)(g) – processing is necessary for reasons of substantial public interest, on the basis of domestic law which shall be proportionate to the aim pursued, respect the essence of the right to data protection and provide for suitable and specific measures to safeguard the fundamental rights and the interests of the data subject; DPA 2018, Schedule 1, Part 2, section 6 – the exercise of a function of the Crown, a Minister of the Crown or a government department. *<u>London Borough of Camden</u>* *Personal data: UK GDPR Article 6(1)(e) – the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the Controller,* *No special category or criminal offence data being processed*

Special Terms	*N/A*